

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
JUSTIN NUNEZ,

Plaintiff,

SUMMONS

- against -

Index No.

THE CITY OF NEW YORK; NYPD OFFICER
AUBRIE VANWEELE; NYPD OFFICER JOHN DOE
1; and NYPD SERGEANT JOHN DOE 2,Defendants.
----- X**To the above-named Defendant:**

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Ridgewood (Queens), New York
October 10, 2022**COHEN&GREEN P.L.L.C.**By: *Jessica Massimi*
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To:

THE CITY OF NEW YORK
c/o The New York City Law Department
100 Church Street
New York, NY 10007

NYPD OFFICER AUBRIE VANWEELE
c/o 72nd NYPD Precinct
830 4th Avenue
Brooklyn, NY 11232

NYPD OFFICER JOHN DOE 1

NYPD SERGEANT JOHN DOE 2

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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1; and NYPD SERGEANT JOHN DOE 2,

Defendants.
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VERIFIED COMPLAINT

Index No.

Plaintiff JUSTIN NUNEZ, by and through his attorneys, Gideon Orion Oliver and Cohen
& Green P.L.L.C., as and for his Complaint in this matter, alleges as follows:

JURISDICTION

1. Plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.
2. The federal civil rights claims in this action are brought pursuant to 42 U.S.C. § 1983 for violations of the Fourth and Fourteenth Amendments to the Constitution of the United States.
3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.
4. Plaintiff also brings claims under New York law and the New York constitution.

VENUE

5. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, including because Plaintiff's claims arose there.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

6. Mr. Nunez served a Notice of Claim upon the City of New York related to Plaintiff's state law claims on December 1, 2021.

7. Mr. Nunez attended a hearing pursuant to section 50-h of the New York General Municipal Law on June 1, 2022 related to Plaintiff's state law claims.

8. More than thirty days have elapsed since Mr. Nunez served the Notice of Claim on Defendant City, and Defendant City has not offered adjustment or payment of Mr. Nunez's claim.

DEMAND FOR A JURY TRIAL

9. Plaintiff demands a trial by jury in this action on each and every one of Plaintiff's claims for which a jury trial is legally available.

PARTIES

10. At all times relevant herein, Plaintiff Justin Nunez (Mr. Nunez; he/him) was a resident of the County, City, and State of New York.

11. Defendant City of New York (the "City") is a municipal entity created and authorized under the laws of the State of New York. The City is authorized by law to maintain a police department, and does maintain the NYPD, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers.

12. Defendant NYPD Officer Aubrie Vanweele was, at all times relevant to this Complaint, a member of the NYPD assigned to the 72nd Precinct. Officer Vanweele was an employee and agent of the NYPD who was personally involved in depriving Plaintiff of

Plaintiff's rights and in implementing the unconstitutional policies, practices, customs and/or conduct complained of herein, as set forth more fully below.

13. At all times relevant herein, Defendants NYPD members John Does 1 and 2 were employees and agents of the NYPD who were personally involved in depriving Plaintiff of Plaintiff's rights and in implementing the unconstitutional policies, practices, customs and/or conduct complained of herein, as set forth more fully below.

14. Defendant NYPD Officer John Doe 1 is a tall, apparently white man, who was wearing a blue NYPD uniform with a low haircut.

15. Defendant NYPD Sergeant John Doe 2 is a heavy-set, bald, apparently white male who was wearing a blue NYPD uniform with Sergeant's stripes.

16. At all times hereinafter mentioned, Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

17. Each and all of the acts and omissions of the Defendants alleged herein occurred while said Defendants were acting within the scope of their employment by the Defendant City.

18. Defendants were duly appointed and acting officers, servants, employees, and agents of Defendant City who were acting for, and on behalf of, and with the power and authority vested in them by Defendant City, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

19. Defendants were each and all responsible, in whole and/or in part, for the planning for and/or creation, promulgation, implementation, and/or enforcement of the unconstitutional policies, practices and/or customs complained of herein, and/or condoned,

acquiesced in, adopted, and/or approved of the same, through their acts and/or failures to act, as set forth more fully below.

20. At all times relevant herein, as set forth more fully below, Defendants' actions and/or failures to act were malicious, intentional, knowing, and/or with a deliberate indifference to or a reckless regard for the natural and probable consequences of their acts and/or omissions.

21. Although they were aware of the conduct, present for it, and knew or should have known it was unconstitutional, at no time did any of the Defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the unconstitutional conduct engaged in by their fellow officers.

22. Each individual Defendant is sued in their individual and official capacities.

STATEMENT OF FACTS

23. At about 11:00 p.m., on September 2, 2021, Plaintiff was lawfully present at or near 50th Street between 4th and 5th Avenues, Kings County, City and State of New York.

24. At this time, the individual Defendants approached Plaintiff and asked him for his identification.

25. As Plaintiff attempted to comply, Defendant John Doe 1 punched Mr. Nunez in the face.

26. Plaintiff was not engaged in any violent or threatening activity and there was no basis for the Defendants to use any force against Plaintiff, much less the force actually employed.

27. Defendant John Doe 2 repeatedly punched Mr. Nunez in the head, and kicked him repeatedly on his body and torso, including in his ribs.

28. One of the Doe Defendants instructed Defendant Vanweele to tase Mr. Nunez, which she did, at least twice.

29. Defendants restrained Mr. Nunez by sitting on top of him.

30. Mr. Nunez did not resist arrest. Despite the fact that he was not resisting arrest, Defendants continued to subject Mr. Nunez to force by kicking him and punching him.

31. The Defendants then placed Mr. Nunez in handcuffs.

32. In the course of arresting him, NYPD members, including, but not limited to, Defendant John Does 1 and 2, applied metal handcuffs to Mr. Nunez's wrists with extreme tightness. Mr. Nunez complained about the excessive tightness of the handcuffs, but the members of the NYPD to whom Plaintiff complained did not take any steps to alleviate the excessive tightness of the handcuffs until after Mr. Nunez was forced to endure the excessively tight handcuffs for an extended period of time.

33. NYPD members unlawfully seized and searched Mr. Nunez's property, which was not been returned, including his cell phones, and a vehicle that the NYPD referred to as a "motorized scooter", and \$2,900.

34. Mr. Nunez was then transported to a local area hospital to receive treatment for the injuries he sustained at the hands of the Defendants.

35. As a result of Mr. Nunez's beating at the hands of the Defendants, Mr. Nunez sustained several physical injuries including pain, bruising, and contusions to his face, hands, wrists, head, and body.

36. There was no justification for the Defendants' use of any force against Mr. Nunez, much less the force actually applied.

FIRST CLAIM FOR RELIEF**Excessive Force*****Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the Fourth and Fourteenth Amendments to the United States Constitution***

37. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

38. Defendants' use of force against Plaintiff was unjustified and objectively unreasonable, considering the facts and circumstances that confronted Defendants.

39. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of Plaintiff's federal, state, and/or other legal rights; caused Plaintiff's bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

40. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SECOND CLAIM FOR RELIEF**Violations of New York State Law*****Pursuant to the New York State Constitution and New York State Law*****Against All Defendants**

41. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

Respondeat Superior Liability

42. The conduct of the police officials alleged herein occurred while they were on duty and/or in and during the course and scope of their duties and functions as police officials, and/or while they were acting as agents and employees of Defendant City, clothed with and/or invoking

state power and/or authority, and, as a result, Defendant City is liable to the Plaintiffs pursuant to the state common law doctrine of *respondeat superior*.

Violations of the New York State Constitution

43. Defendants, acting under color of law, violated Plaintiff's rights pursuant to Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution.

44. A damages remedy here is necessary to effectuate the purposes of Article I, §§ 6, 8, 9, 11, and 12 of the New York State Constitution, and appropriate to ensure full realizations of Plaintiffs' rights under those sections.

Assault

45. Defendants committed assault within the meaning of New York common law against Plaintiff by intentionally placing Plaintiff in fear of imminent harmful or offensive contact.

Battery

46. Defendants committed battery within the meaning of New York common law against Plaintiff by intentionally physically contacting Plaintiff without Plaintiff's consent.

Conversion

47. Defendants committed conversion by intentionally taking possession of and/or interfering with Plaintiff's personal property in derogation of Plaintiff's property rights.

Negligent Training and Supervision

48. Upon information and belief, Defendant City negligently trained and supervised the police officials described above.

49. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

DEMAND FOR JUDGMENT

WHEREFORE, Plaintiff demands judgment against the individual Defendants and the City of New York as follows:

- i. Actual and punitive damages against the individual Defendants in an amount to be determined at trial;
- ii. Actual damages in an amount to be determined at trial against the City of New York;
- iii. Statutory attorney's fees, disbursements, and costs of the action pursuant to, *inter alia*, 42 U.S.C. § 1988 and New York common law; and
- iv. Such other relief as the Court deems just and proper.

Dated: Ridgewood (Queens), New York
October 10, 2022

COHEN&GREEN P.L.L.C.

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GIDEON ORION OLIVER

A handwritten signature in black ink, reading "Gideon Orion Oliver", followed by a horizontal line.

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ATTORNEY'S VERIFICATION

I, JESSICA MASSIMI, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1. I am the attorney of record for the Plaintiff.
2. I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
3. I make this verification because Plaintiff does not reside in the County (Queens) where Cohen&Green, PLLC maintain their offices.

Dated: Ridgewood (Queens), New York
October 10, 2022

COHEN&GREEN, PLLC



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